

22LBCV00586 22LBCV00586

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-30

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Case Number: 22LBCV00586 Hearing Date: July 30, 2026 Dept: S27

1. Background

Facts

Plaintiff, Ramiro C. Ortega Uraje

filed this action against Defendant, American Honda Motor Co., Inc. for

Song-Beverly violations and related claims.

The parties settled the case, but did not agree on an amount of

attorneys' fees and costs; the parties' settlement agreement, in this regard,

states that Defendant will pay "Plaintiff's statutory costs and

expenses...including reasonable attorneys' fees, in an amount determined by

stipulation or by the Court to have been reasonably incurred by Plaintiff in

connection with the commencement and prosecution of this action."

2. Motion

for Attorneys' Fees and Costs

a.

History

The Court was originally scheduled

to hear this motion on 4/07/26. The

Court continued the hearing on the motion and ordered the parties to meet and

confer and file supplemental briefs concerning any outstanding issues. The parties have repeatedly failed to comply

with the Court's order, and continue to fail to do so. They have failed to meaningfully meet and

confer, but, more importantly, they have failed to BRIEF the remaining issues,

as repeatedly ordered to do and as will be discussed more fully below.

b.

Fees

As noted above, Defendant's

original brief was 35 pages long, and the Court admonished Defendant it would

not consider the brief. In the 4/07/26

order, the Court ordered the parties to meet and confer and to file supplemental

opposition and reply. On 5/06/26,

Defendant filed a supplemental opposition, but the supplemental opposition

addressed ONLY costs, leading the Court to issue a tentative ruling indicating

issues re: fees had been resolved and only issues re: costs remained. At the hearing, the parties indicated issues

relating to fees had NOT been resolved, so the Court continued the hearing a

second time. The Court specifically

reiterated that it would not consider a 35-page brief, and continued the hearing, ordering the parties to file timely briefs in compliance with the Rules of Court prior to the continued hearing date.

Defendant continued to fail to do

so. There is no brief filed with the

supplemental declaration. There is,

therefore only one brief on file in connection with the motion for attorneys'

fees, and it is the original 35-page brief that the Court has repeatedly

admonished Defendant it will not consider.

At this time, the Court strikes the 35-page opposition brief filed in

connection with the motion for attorneys' fees.

The Court awards fees in the full amount sought, \$90,635.92.

c.

Costs

With respect to the costs, a

similar issue exists. In connection with

the original order, the Court told the parties it would consider costs sought

by way of noticed motion, and ordered the parties to meet and confer in light

of that decision. In the parties'

supplemental briefing, Defendant raised foundation. In the Court's 5/19/26 order, the Court

indicated it found the foundation issue had merit and continued the matter for

Plaintiff to provide an attorney declaration with foundation and/or a brief re:

foundation. Plaintiff did neither. The Court therefore strikes the entire

memorandum of costs because the costs are unfounded. The motion to tax costs is granted in

full.

d.

Notice

Plaintiff is ordered to give notice.